

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE	OF	PAGES
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

Previous edition unusable

SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Block 14 (Description of Amendment/Modification): This amendment 05 is issued for an extension to the due date for offers for the subject Request for Quotation (RFQ). The new deadline for receipt of offers is 04:00 PM on 24 March 2026, Japan Standard Time (JST). This extension is provided to incorporate the following revisions into the solicitation:

1. An updated Performance Work Statement (PWS).
2. A revised Contract Line Item Number (CLIN) structure.
- 3 REQUEST FOR CLARIFICATION : Quoter may request clarification of any specification or contract term. No verbal requests for information will be accepted by the Contracting Officer or his/her Technical Representative. Quoter's questions must be submitted to yoko.yamaguchi.ln@us.navy.mil and mariacrispina.c.mallari2.ln@us.navy.mil in writing via email by Close of Business by 2:00PM, 23 March 2026 (Monday) (Japan Standard time (JST)). All questions and answers will be submitted via an amendment to the original solicitation.

In accordance with the new Contract Line Item Number (CLIN) structure, please submit a quotation that provides a detailed breakdown of the following:

- (1) Unit Price and quantity for each CLIN
- (2) Total Amount for Base Year I
- (3) Total Amount for Base Year II
- (4) Grand Total: The combined total amount for both Base Year I and Base Year II

(Base Year I 10 April 2026 through 09 April 2027)

CLIN 0001: 280 JOB
CLIN 0002: 180 JOB
CLIN 0003: 20 JOB
CLIN 0004: 02 JOB
CLIN 0005: 03 JOB
CLIN 0006: 02 JOB
CLIN 0007: 02 JOB
CLIN 0008: 02 JOB
CLIN 0009: 10 Hours
CLIN 0010: 07 Hours
CLIN 0011: 02 Hours
CLIN 0012: 02 Hours

(Base Year II 10 April 2027 through 09 April 2028)

CLIN 1001: 280 JOB
CLIN 1002: 180 JOB
CLIN 1003: 20 JOB
CLIN 1004: 02 JOB
CLIN 1005: 03 JOB
CLIN 1006: 02 JOB
CLIN 1007: 02 JOB
CLIN 1008: 02 JOB
CLIN 1009: 10 Hours
CLIN 1010: 07 Hours
CLIN 1011: 02 Hours
CLIN 1012: 02 Hours

Quoter (s) are required to acknowledge receipt of this amendment with their submission.

Solicitation/Contract Form Continuation

The following changes have been made:

INFORMATION	FROM	TO
Response Due Date	20 Mar 2026	24 Mar 2026

Continuation of Supplies or Services and Prices/Costs

The following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0001

INFORMATION	FROM	TO	CHANGED BY
Description	Bunkering Service MAX QUANTITY 395,000 BarrelSee below PWS paragraph 1.3 (a) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)	Operation Charge Up to 132,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	395,000	280	-394,720
Unit of Measure	Barrel	Job	-394,720
Cost Constraints	Not to Exceed	Estimated	-394,720

0002

INFORMATION	FROM	TO	CHANGED BY
Description	De-bunkering Service MAX QUANTITY 30,000 BarrelSee below PWS paragraph 1.3 (a) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)	Operation Charge 132,001 USG to 264,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	30,000	180	-29,820
Unit of Measure	Barrel	Job	-29,820
Cost Constraints	Not to Exceed	Estimated	-29,820

0003

INFORMATION	FROM	TO	CHANGED BY
Description	Demurrage Charge MAX QUANTITY 30 hoursSee below PWS paragraph 1.3 (b) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)	Operation Charge 264,001 USG to 396,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	30	20	-10
Unit of Measure	Hours	Job	-10
Cost Constraints	Not to Exceed	Estimated	-10

0004

INFORMATION	FROM	TO	CHANGED BY
Description	Cancellation of Bunkering, De- bunkering MAX QUANTITY 3 JobUnder CLIN 0001 and 0002 when the conditions fell with the scope set forth in 1.3 (c) andother related paragraph of PWS. (Base Year I with performance 10 April 2026 through 09 April 2027)	Operation Charge 396,001 USG to 528,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	3	2	-1
Cost Constraints	Not to Exceed	Estimated	-1

0005

INFORMATION	FROM	TO	CHANGED BY
Description	Cancellation of Oil Boom ServiceMAX QUANTITY 1 JobUnder CLIN 0007 and 0008 when the conditions fell within the scope set forth in 1.3 (e)and other related paragraph of PWS.(Base Year I with performance 10 April 2026 through 09 April 2027)	Cancellation Charge Up to 132,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	1	3	+2
Cost Constraints	Not to Exceed	Estimated	+2

0006

INFORMATION	FROM	TO	CHANGED BY
Description	Return Charge MAX QUANTITY 30 JobSee below PWS paragraph 1.3 (d) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Cancellation Charge 132,001 USG to 264,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	30	2	-28
Cost Constraints	Not to Exceed	Estimated	-28

0007

INFORMATION	FROM	TO	CHANGED BY
Description	Oil Boom ServiceMAX QUANTITY 50 JobSee below PWS paragraph 1.3 (e)(i) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Cancellation Charge 264,001 USG to 396,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	50	2	-48
Cost Constraints	Not to Exceed	Estimated	-48

0008

INFORMATION	FROM	TO	CHANGED BY
Description	Oil Boom Service with DONUT FENDERS MOVING OPERATIONS MAX QUANTITY 10 JobSee below PWS paragraph 1.3 (e)(ii) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Cancellation Charge 396,001 USG to 528,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	10	2	-8
Cost Constraints	Not to Exceed	Estimated	-8

0009

INFORMATION	FROM	TO	CHANGED BY
Description	RENTAL OF EXTRA HOSES MAX QUANTITY 1,200 MeterSee below PWS paragraph1. 3 (f) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Demurrage Charge Up to 132,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	1,200	10	-1,190
Unit of Measure	Meter	Hours	-1,190
Cost Constraints	Not to Exceed	Estimated	-1,190

0010

INFORMATION	FROM	TO	CHANGED BY
Description	FOR 0800-1700 HOURS OIL, OILY SUBSTANCE REMOVAL SERVICES MAX QUANTITY 2 HoursSee below PWS paragraph1. 3 (g) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Demurrage Charge 132,001 USG to 264,000 USG(Base Year I with performance 10 April 2026 through 09 April 2027)	
Quantity	2	7	+5
Cost Constraints	Not to Exceed	Estimated	+5

0011

INFORMATION	FROM	TO
Description	FOR 0600-0800, 1700-2200 HOURS MAX QUANTITY 2 hoursOIL, OILY SUBSTANCE REMOVAL SERVICES. See below PWS paragraph1. 3 (g) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	Demurrage Charge 264,001 USG to 396,000 USG (Base Year I with performance 10 April 2026 through 09 April 2027)

Cost Constraints	Not to Exceed	Estimated
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0012

INFORMATION	FROM	TO
Description	FOR 2200-0600 HOURS MAX QUANTITY 2 Hours OIL, OILY SUBSTANCE REMOVAL SERVICES . See below PWS paragraph 1.3 (g) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)	Demurrage Charge 396,001 USG to 528,000 USG (Base Year I with performance 10 April 2026 through 09 April 2027)
Cost Constraints	Not to Exceed	Estimated

1001

INFORMATION	FROM	TO	CHANGED BY
Description	Bunkering Service MAX QUANTITY 395,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)	Operation Charge Up to 132,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	395,000	280	-394,720
Unit of Measure	Barrel	Job	-394,720
Cost Constraints	Not to Exceed	Estimated	-394,720

1002

INFORMATION	FROM	TO	CHANGED BY
Description	De-bunkering Service MAX QUANTITY 30,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)	Operation Charge 132,001 USG to 264,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	30,000	180	-29,820
Unit of Measure	Barrel	Job	-29,820
Cost Constraints	Not to Exceed	Estimated	-29,820

1003

INFORMATION	FROM	TO	CHANGED BY
Description	Demurrage Charge MAX QUANTITY 30 hours See below PWS paragraph 1.3 (b) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)	Operation Charge 264,001 USG to 396,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	30	20	-10
Unit of Measure	Hours	Job	-10
Cost Constraints	Not to Exceed	Estimated	-10

1004

INFORMATION	FROM	TO	CHANGED BY
Description	Cancellation of Bunkering, De-bunkering MAX QUANTITY 3 Job Under CLIN 1001 and 1002 when the conditions fell with the scope set forth in 1.3 (c) and other related paragraph of PWS. (Base Year II with performance 10 April 2027 through 09 April 2028)	Operation Charge 396,001 USG to 528,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	3	2	-1
Cost Constraints	Not to Exceed	Estimated	-1

1005

INFORMATION	FROM	TO	CHANGED BY
	Cancellation of Oil Boom Service MAX QUANTITY 1 Job Under CLIN 1007 and 1008 when the conditions fell within the	Cancellation Charge Up to 132,000 USG (Base Year II with	

Description	scope set forth in 1.3 (e)and other related paragraph of PWS.(Base Year II with performance 10 April 2027 through 09 April 2028)	performance 10 April 2027 through 09 April 2028)	
Quantity	1	3	+2
Cost Constraints	Not to Exceed	Estimated	+2

1006

INFORMATION	FROM	TO	CHANGED BY
Description	Return Charge MAX QUANTITY 30 JobSee below PWS paragraph 1.3 (d) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Cancellation Charge 132,001 USG to 264,000 USG(Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	30	2	-28
Cost Constraints	Not to Exceed	Estimated	-28

1007

INFORMATION	FROM	TO	CHANGED BY
Description	Oil Boom ServiceMAX QUANTITY 50 JobSee below PWS paragraph 1.3 (e)(i) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Cancellation Charge 264,001 USG to 396,000 USG(Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	50	2	-48
Cost Constraints	Not to Exceed	Estimated	-48

1008

INFORMATION	FROM	TO	CHANGED BY
Description	Oil Boom Service with DONUT FENDERS MOVING OPERATIONS MAX QUANTITY 10 JobSee below PWS paragraph 1.3 (e)(ii) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Cancellation Charge 396,001 USG to 528,000 USG(Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	10	2	-8
Cost Constraints	Not to Exceed	Estimated	-8

1009

INFORMATION	FROM	TO	CHANGED BY
Description	RENTAL OF EXTRA HOSES MAX QUANTITY 1,200 MeterSee below PWS paragraph1. 3 (f) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Demurrage ChargeUp to 132,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	1,200	10	-1,190
Unit of Measure	Meter	Hours	-1,190
Cost Constraints	Not to Exceed	Estimated	-1,190

1010

INFORMATION	FROM	TO	CHANGED BY
Description	FOR 0800-1700 HOURS OIL, OILY SUBSTANCE REMOVAL SERVICES MAX QUANTITY 2 HoursSee below PWS paragraph1. 3 (g) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Demurrage Charge 132,001 USG to 264,000 USG(Base Year II with performance 10 April 2027 through 09 April 2028)	
Quantity	2	7	+5
Cost Constraints	Not to Exceed	Estimated	+5

1011

INFORMATION	FROM	TO
Description	FOR 0600-0800, 1700-2200 HOURS MAX QUANTITY 2 hoursOIL, OILY SUBSTANCE REMOVAL SERVICES. See below PWS paragraph1.3 (g) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028)	Demurrage Charge 264,001 USG to 396,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)
Cost Constraints	Not to Exceed	Estimated

1012

INFORMATION	FROM	TO
Description	FOR 2200-0600 HOURS MAX QUANTITY 2 HoursOIL, OILY SUBSTANCE REMOVAL SERVICES . See below PWS paragraph1.3 (g) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)	Demurrage Charge 396,001 USG to 528,000 USG (Base Year II with performance 10 April 2027 through 09 April 2028)
Cost Constraints	Not to Exceed	Estimated

The following CLIN(s) / SLIN(s) / ELIN(s) were deleted:

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0013	DISPOSAL AND ABSORBENTS MAX QUANTITY 2 PackageThe Contractor shall provide oil, oily substance removal services, includingdisposal of the retrieved absorbents. (Base Year I with performance 10 April 2026 through 09 April 2027) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	2	Package		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0014	Cancellation of Oil, Oily Substance Removal Services MAX QUANTITY 1 Job(Base Year I with performance 10 April 2026 through 09 April 2027) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	1	Job		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0015	TANK CLEANING CHARGESSee below PWS paragraph 1.3 (h) and other related paragraphMAX QUANTITY 29 Job(Base Year I with performance 10 April 2026 through 09 April 2027) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	29	Job		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0016	MULTIPLE BUNKERING SERVICEMAX QUANTITY 5,000 BarrelSee below PWS paragraph 1.3 (i) and other related paragraph. (Base Year I with performance 10 April 2027 through 09 April 2028) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	5000	Barrel		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
	MINIMUM GUARANTEEMAX QUANTITY 1 LotThis Contract Line Item Number				

0017	(CLIN) shall only be invoiced in the event the contract has not ordered sufficient bunkering/debunkering services totaling USD 1,000.00 or equivalent Japanese YEN per applicable Budget Exchange Rate (BER) and will only be billable within the first year of the contract. Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	1	Lot		
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Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
1013	DISPOSAL AND ABSORBENTS MAX QUANTITY 2 Package The Contractor shall provide oil, oily substance removal services, including disposal of the retrieved absorbents. (Base Year II with performance 10 April 2027 through 09 April 2028) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	2	Package		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
1014	Cancellation of Oil, Oily Substance Removal Services MAX QUANTITY 1 Job (Base Year II with performance 10 April 2026 through 09 April 2027) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	1	Job		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
1015	TANK CLEANING CHARGE MAX QUANTITY 29 Job See below PWS paragraph 1.3 (h) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	29	Job		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
1016	MULTIPLE BUNKERING SERVICE MAX QUANTITY 5,000 Barrel See below PWS paragraph 1.3 (i) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Product Service Code: V124 Customer Reference Number: 20250005182 Pricing Arrangement: Firm Fixed Price	5000	Barrel		

Continuation of Description

Miscellaneous text in this section has been modified to:

PERFORMANCE WORK STATEMENT (PWS)(Mar 19 2026)

BUNKER/DE-BUNKER TRANSPORTATION SERVICE

1.0 SCOPE OF CONTRACT

1.1 General:

(a) This contract covers the transportation and removal of United States Government-owned Naval Distillate Fuel (F76) and Jet Aviation Turbine Fuel (JP5) by barge, also referred to as bunkering services, from Commander Fleet Activities Yokosuka (CFAY), please reference Section 1.10 Berth Information, to U.S. Government owned or chartered vessels or Foreign Government owned vessels at the Tokyo Bay area in Japan. This performance shall be provided by barges compliant with all Japanese maritime laws. The Contractor shall be capable of providing fuel barges for deliveries/defuels within the following quantity range:

Up to 132,000 USG
132,001 USG to 264,000 USG
264,000 USG to 396,000 USG
396,001 USG to 528,000 USG

A single barge per delivery is preferred. However, multiple barges will be acceptable for a single delivery provided the conditions of Sections 1.9(k) and 1.4(a) are met for each barge.

- (i) Requesting activity is hereinafter "Customer".
- (ii) Contractor's vessels or barges are hereinafter "Contractor".

1.2 Hours of Operation:

Normal operating hours for loading at Defense Fuel Support Point (DFSP) Hakozaki are 0800 to 1630, Monday through Friday, with necessary operations required on weekends and/or national holidays. Normal delivery hours are first light (approximately 0700) to sunset (approximately 1800), Monday through Friday. Loading typically occurs one day prior to delivery. Demurrage will not be charged to the US Government for the hours between completion of loading and scheduled delivery time. For Customer vessels moored within CFAY's N38 Fuels' Area of Responsibility, vetting (inspection and security screening) is required prior to each delivery. Vetting is normally conducted at first light, regardless of actual scheduled delivery time. Demurrage will not be charged to the US Government during the hours between completion of vetting and scheduled delivery time.

1.3 Technical Requirement:

- (a) The Contractor shall have necessary crew and equipment to accomplish the bunkering/de-bunkering operation.
- (b) The Contractor shall be licensed to carry the following clean petroleum products: NATO F76 and F44 (JP5). Such a ship shall comply with the existing Japanese safety and environmental laws and regulations.
- (c) The Contractor shall use a ship with cargo tanks that are appropriately coated and are otherwise acceptable to receive the cargo identified in the Customer's order. Barges offered for consideration that are constructed of either stainless steel or carbon steel that has been epoxy coated with a non-coal tar-based grade of epoxy, or uncoated mild steel tanks are acceptable for performance consideration as stated in this contract. The use of copper and copper alloys (brass, bronze, etc.) in vessel compartments, pipelines, heating coils, and fittings is not permitted.
- (d) The Contractor shall provide suitable and operable barge(s) and be capable of providing equivalent to 3 barges with 500.00 kl tank capacity each and 3 barges with 300.00 kl tank capacity each per task order to cover the maximum requirement of 2,400 kl delivery per day.
- (e) The ship provided by the Contractor pursuant to this contract is subject to inspection and acceptance by a representative of the Customer and the Commander Fleet Activities Yokosuka (hereinafter referred to as "CFAY") Hakozaki Fuel Terminal prior to loading or discharging of cargo.

1.4 Description of Services:

(a) Operation Charge for Bunkering/De-bunkering: The Contractor shall perform the fuel delivery or defueling job, after receipt of a written delivery order (Standard Form 1449) or oral delivery order issued by the Contracting Officer (KO) or Ordering Officer (OO). Oral delivery orders will be confirmed with an SF 1449 within ten (10) days of issuance of the oral delivery order. If a written or oral delivery order is issued within 48 hours of the required delivery time, the contractor is not obligated to perform under the delivery order. However, if the contractor has the capability and capacity to perform in accordance with the written or oral delivery order the contractor shall perform at the contract price. Actual operating performance means when the Contractor's vessel/barge has already been dispatched from her ordinary mooring place. As soon as possible after receipt of the delivery order, but no later than the departure of barge from its regular berth (ordinary mooring place), the Contractor shall provide the barge name to the Contracting Officer/Ordering Officer and COR. Once this information has been provided, substitution of barge equipment requires Contracting Officer approval.

Fuel offloads are the responsibility of the Customer, who will compensate the Contractor for all de-bunkering costs (defuel transportation and handling). The Ordering Officer must secure and receive documented acceptance for all required funding prior to the commencement of any work. This requirement includes, but is not limited to, ensuring sufficient funds are available to cover potential ancillary charges such as demurrage fees or

cancellation fees.

(b) Demurrage Charge for Bunkering/De-bunkering: Demurrage is the time lost as a result of stoppage, or inability to start bunkering or de-bunkering of cargo due to causes beyond control and without fault or negligence of the Contractor. Delays caused by inclement or severe weather will result in no charge or penalties to either the Contractor or the Government. The Ordering Officer must secure and receive documented acceptance for all required funding prior to the commencement of any work. This includes ensuring sufficient funds are available to cover potential ancillary charges, such as this demurrage charges.

The Customer vessel will be allowed 120 minutes after scheduled delivery time to commence delivery. If the Customer vessel is responsible for delays beyond 120 minutes, the contractor is entitled to payment for demurrage as identified in the CLINS in Schedule B. Where delays are attributed to causes beyond the control and without the fault or negligence of the Contractor or the U.S. Government, the contractor is entitled to payment of demurrage for one-half of the delay. Such circumstances include acts of God or of the public enemy; fires; floods; epidemics and severe weather. In case barge(s) is assigned across multiple days, 120 minutes commences from the Customer's requested delivery time each day.

(i) For purpose of shortening the amount of operation time, multiple barges are scheduled at the same time in the same place for delivering, in which case barges are not in the operation should not be the objected to demurrage. The connection and disconnection time of barge hoses between multiple barges and/or any time lost when the Customer needs to stop the operation and open/close oil booms due to entering/releasing the Contractor's barge will not be assessed as demurrage charge. In case multiple barges are assigned at the same time, 120 minutes commences when the previous barge departs and the oil boom is reconnected.

(iii) Demurrage will not be assessed outside of normal fuel operation hours of sunrise to sunset for bunkering/de-bunkering operations in Yokosuka Naval base When the task order is cancelled during a period exceeding 120 minutes for bunkering, the Customer will pay demurrage charge.

(c) Cancellation Charge for Bunkering/De-bunkering: The Ordering Officer has the authority to cancel an order, either orally or in writing, at any time prior to the scheduled commencement of pre-loading services. If the initial order was confirmed in writing, the Ordering Officer will formalize the cancellation via a task order modification. A cancellation charge, as specified in the task order, will be assessed for each cancelled order, without regard to the size or number of barges utilized. The Ordering Officer must secure and receive documented acceptance for all required funding prior to the commencement of any work. This includes ensuring sufficient funds are available to cover potential ancillary charges, such as this cancellation fee.

Cancellation of the delivery order at any time, if due to circumstances beyond the control of the Customer vessel, will not result in a cancellation charge. Such circumstances include acts of God or of the public enemy; fires; floods; epidemics and severe weather. In addition, the Contractor will not be entitled to any payment under the termination for convenience provision at FAR 52.212-4(l) that is separately included in this contract.

The Customer shall pay the cancellation charge per task order without regard to the size and/or the number of barges utilized.

(i) If the task order for bunkering or de-bunkering service is cancelled before the Contractor's barge leaves its regular berth (ordinary mooring place), neither the basic freight nor cancellation charge will be paid to the Contractor. In addition, the Contractor will not be entitled to any payment under the termination for convenience provision at FAR 52.212-4(1) that is separately included in this contract.

(ii) When the task order for bunkering or de-bunkering service is cancelled after the Contractor's barge already leaves its regular berth (ordinary mooring place) but before start loading fuel, no basic freight applies but the Customer will only pay cancellation charge to the Contractor in accordance with the pricing schedule. The Contractor shall not be entitled to any payment under the termination for convenience provision at FAR 52.212-4(l) that is separately included in this contract.

(iii) When the task order for bunkering service is cancelled after the Contractor's barge already starts fuel pre-loading or anytime after completed fuel loading at DFSP Hakozaki, neither the basic freight nor cancellation charge shall be paid but the Customer will compensate for return charge to the Contractor.

(d) Delay in Performance: Any overtime costs incurred by US Government personnel as a result of a delay in performance caused by the contractor will be the responsibility of the Contractor. These costs will be deducted from the Contractor's invoice.

(e) Failure to Perform: Should the Contractor be unable to perform and the US Government must procure services from an alternate source to meet delivery or defuel requirements the Contractor is unable to meet, the contractor will be liable for any re-procurement costs in excess of the delivery order price.

(f) Cargo Delivery Services.

(i) Loading Cargo. Upon arrival at DFSP Hakozaki, the Contractor shall load any quantity of cargo as specified by the COR / Ordering Officer.

(ii) Discharging Cargo. Upon arriving at the Customer vessel, the contractor shall discharge any quantity of cargo, entire or partial, as specified by the COR/Ordering Officer. Prior to connection, the contractor is required to ask for a Customer vessel representative to verify the seal number and confirm that the seal is intact.

(iii) Defueling Cargo. Upon arriving at the Customer vessel, the contractor shall defuel any quantity of cargo, entire or partial, as specified by the COR /Ordering Officer.

(g) Responsibility for Cargo.

(ii) Loss or Damage Liability. The contractor shall sign the Tanker/Barge Material Inspection and Receiving Report (DD 250-1) as its receipt for the Government property it received for transportation. The Contractor assumes full liability for, and agrees to reimburse the Government for, the actual loss and/or damage to the cargo, except when the loss and/or damage arises from circumstances beyond the control of the contractor. Such circumstances include acts of God or of the public enemy; fires; floods; epidemics and severe weather. Liability is based on the procurement and transportation cost of the cargo.

(iii) Contamination or Degradation Liability. If contamination or degradation of Government cargo occurs due to the contractor's failure to properly maintain its equipment, the contractor shall be liable to the Government for replacement costs and/or associated costs with returning the cargo to specification. Replacement costs are based on the procurement and transportation cost of the cargo.

(iv) Gauging. Gauging of the barge(s) is performed jointly. A Government representative must witness gauging of the barge(s). Tankerman, and/or

third party inspection personnel are responsible for gauging of the barge. Gauging equipment used for quantity determination must be in proper serviceable condition. The Contractor shall ensure that responsible personnel are readily available for gauging operations so as to not unduly delay release and departure of the barge. The Contractor shall ensure that Tanker/Barge Material Inspection and Receiving Report (DD 250-1) is annotated at both the loading and discharge locations. The form may be annotated by the Government Representative or CFAY Fuel Terminal Operator, but in this case the contractor will verify and agree with gauge figures and readings annotated.

(v) Carry Away Liability. The Contractor shall be liable for all measurable product carried away due to failure of the contractor's equipment to discharge the cargo completely, excluding product remaining in equipment lines, manifolds, and sumps (10 barrels before line drop). Liability is based on the procurement and transportation cost of the cargo carried away and is to be deducted from the contractor's invoice.

(vi) Ownership, Acceptance, and Disposition of Debunkered Fuel. Ownership of all debunkered fuel shall remain with the customer until said fuel has passed all quality acceptance testing conducted by the DFSP and has been formally accepted into DFSP inventory. Should the DFSP determine, at its sole discretion, that the debunkered fuel is off-specification, the product will be rejected. Upon rejection, the customer shall be solely responsible for all costs and logistics associated with the transportation, removal, and final disposal of the rejected fuel. The DFSP shall not be financially liable for any aspect of the off-specification product's disposition. The removal and disposal of rejected fuel are outside the scope of this contract. The customer is solely responsible for making all necessary arrangements for the disposition of rejected product in accordance with all applicable regulations

(h) Reporting and Communication. All delivery orders, task orders, service requests, and related operational communications ("Orders") placed under this contract shall be issued in the English language. The Contractor shall maintain contact with the COR, the various consignors, consignees, and the Government Representative or CFAY Fuel Terminal Operator to ensure prompt and efficient cargo movement, and shall provide position and status reports and communication regularly to the COR and others, as required. The COR can be contacted at the following:

(i) Performance Objective - Readiness Notice. Prior to arrival at DFSP or the Customer vessel, the contractor must provide a Notice of Readiness (NOR) at a minimum of 24, 12, and 3 hours by fax, e-mail or telephone. In addition, the contractor shall provide NOR to DFSP officials immediately upon the barge's arrival at the loading terminal of the port complex.

(ii) Performance Objective - Cargo Documentation. The Contractor shall maintain a copy of all loading documents, including Tanker/Barge Material Inspection and Receiving Report (DD 250-1) for Government use at each Customer vessel. Failure of the contractor to present the listed forms to customer vessels on more than two occasions annually will result in a performance failure.

(j) Safety and Security:

(i) Regulatory Compliance. The Contractor shall maintain and operate all equipment in strict accordance with all applicable Japanese maritime laws and regulations, including but not limited to the Port Regulations Act and the Act on Prevention of Marine Pollution and Maritime Disaster. Furthermore, all operations shall comply with applicable U.S. Department of War (DoW) regulations and the directives of Commander, Fleet Activities Yokosuka (CFAY). The Contractor shall be responsible for obtaining any necessary insurance, licenses and permits at no additional cost to the US Government.

(ii) Safety and Health of Personnel. The Contractor is responsible for ensuring that proper safety and health precautions are taken to protect personnel, the general public, and property of others. All services shall be performed by individuals fully qualified and licensed in their relevant area. The Contractor will ensure that subcontractors comply with these requirements.

(iii) Death or Injury to Personnel. In all instances where Contractor's employees are absent due to injury or death or for purposes of receiving medical attention due to an injury during or arising from performance under this contract, the Contractor shall submit a full written report of the facts and the extent of such injury to the Contracting Officer's Representative (COR) within 24 hours following the occurrence of such injury or death. In addition, the contractor shall submit to the COR a written accident report of each and every accident occurring to the contractor's employees within 24 hours after the occurrence. If an investigation of the accident is conducted, the contractor shall assist the investigator in securing statements from its employees and shall make pertinent records available to the investigator and to the COR. In addition, the Contractor shall cooperate in the reporting and investigation of any environmental or health incident connected with the services provided under this contract.

(iv) Heightened Vigilance. The Contractor has an obligation to be alert at all times in order to contribute to the protection of the U.S. Navy Customer vessels and US Government personnel. The Contractor shall immediately report to the ship's officer, or nearest available Embassy official or Host Nation (HN) representative, any signs of suspicious activity in or around the site of performance. Suspicious activities include, but are not limited to, unauthorized personnel or vehicles in the vicinity of the site of performance, unusual equipment or movement of persons or supplies, and any other activity that may be perceived as a threat to United States personnel, property or interests. The Contractor also has an obligation to report any such activity perceived outside the site of performance, if such activity could reasonably have an impact on the site of performance or could be perceived as a threat to United States personnel, property or interests.

1.5 Duties and Responsibilities of the Parties:

(a) When providing services in response to orders issued pursuant to this contract, the Contractor and/or the Contractor's representative shall be responsible for:

(i) Complying with all applicable statutes, ordinances, laws, codes, and regulations of Japan such as, but not limited to, Safety, Environmental, Labor, Hour and Wage, Workers Compensation and Occupational Health. The Contractor shall, without additional expense to the Government, be responsible for obtaining all required licenses, permits, and the like required for the performance of this contract.

(ii) During operation under this contract, in all instances where cargo, contractor's equipment, or private or US Government property is damaged, lost, or pilfered while in the care, custody, or possession of the contractor or through handling by the contractor's employees, agents, or subcontractors, the contractor shall submit a full written report of the facts and the extent of such damage or loss to the COR within 24 hours following the occurrence or discovery. Details should include how the damage occurred, investigation detail, and an estimate of how and when reimbursement for damages will occur.

(iii) Attend each fuel operation at the place of delivery and support the coordinating of smooth operations. S/he understands bunkering/de-bunkering procedures and forwards all notices to the fuel terminal such as commencement and termination time of the operation, and duration of the operation is established.

- (iv) Providing a ship that arrives at DFSP Hakozaki for loading or at the Customer's ship for de-bunkering operation in clean, gas-free condition, ready for internal inspection by a representative of DFSP Hakozaki or the Customer.
- (v) Providing effective connections such as attachments, couplings, extra hoses, and reducers with the manifold pipes of the Contractor's ship for loading and discharging of the cargo.
- (vi) Provide personnel, representatives, and any subcontractors directly involved in the provision of services or delivery of goods, including all interactions with customers and other active-duty personnel, are able to communicate effectively in the English language. At all times during service delivery, the Contractor must have at least one representative on-site who is fluent in English to act as a point of contact for Government personnel.
- (vii) Invoice(s) must issue to the CFAY Hakozaki Fuel Terminal by task orders. Each invoice should include all proper information based on the requirements of FAR 52.232-25 Prompt Payment (Jul 2013).
- (b) The CFAY Hakozaki fuel terminal will be responsible for:
 - (i) Issuing task orders including oral orders.
 - (ii) Providing all cargo (fuel to be loaded for bunkering services).
 - (iii) Handling ship's lines at the dock in loading or discharging operations.

The Contractor's ship, which previously carried "Palm Oil," cannot be used for this contract unless the Contractor obtained an approval from the Government for use of such vessels under the contract.

(c) Responsibility for Damage to Government Property.

- (i) Damage Due To Contractor Negligence. The contractor shall be responsible for unresolved damage claims and must assume liability for damage to Government property resulting from negligence on the part of the contractor. The contractor must also reimburse the Government for actual expenses incurred by the Government due to breakdown of contractor's equipment or delay due to negligence of the contractor, which prevents prompt acceptance or delivery of intended cargo. The contractor shall also be responsible for lost cargo in route, caused by equipment failure, such as a spill. Lost cargo shall be measured and documented on the Tanker/Barge Material Inspection and Receiving Report (DD 250-1).
- (ii) Prevent Damage to Facilities. The contractor shall be responsible for removing equipment when directed by DFSP personnel or paying for damages caused as a direct result of contractor's decision to remain at pier side during adverse circumstances such as acts of God or of the public enemy; fires; floods; epidemics and severe weather.

1.6 Contractor Quality Control, Reporting and Records.

- (a) Quality Control Plan. The Contractor shall establish and maintain a Quality Control Plan (QCP) to ensure quality service is provided throughout the terms of the contract. The Contractor shall submit a proposed QCP as part of its technical proposal. The QCP should include as a minimum a description of how the Contractor intends to meet the performance objectives, provide cargo free of contamination or degradation, and should also identify those areas the Contractor sees as critical to the customers for this contract, how it will monitor quality performance in those areas, and how it will maintain or exceed customer expectations, including identification and correction of Problems. The Contractor shall also include as part of his technical proposal a copy of the Proof of compulsory insurance in compliance with Japan's Act on Liability for Oil Pollution Damage. The US Government will identify deficiencies noted during the technical evaluation to the Contractor, who will be responsible for making the necessary corrections. . The final, approved QCP must be prepared and submitted in both English and Japanese and shall serve as the guiding document for all work performed under this contract. The Contractor is expected to review and incorporate relevant local procedures and related checklists into their QCP to ensure fueling operations are performed safely and effectively.
- (b) Problem/Failure. The contractor shall self-identify any problem or failure that may impact contract performance. In accordance with its QCP, the contractor shall notify the COR immediately of the problem, and within two (2) business days provide to the COR a succinct written plan of action of contractor self-identification or awareness of a potential or real problem, failure, or deficiency. The contractor shall detail the methodology for correcting the problem or deficiency in the plan of action and provide an assurance of the specific time required to bring performance back to acceptable quality levels, as applicable.
- (c) Use of Quality Performance Information. On a monthly basis, the COR will provide a contractor performance report to the KO. Information from these monthly COR reports will be compiled cumulatively to provide annual reports of past performance for use in past performance evaluations for future awards.
- (d) US Government Quality Assurance. Final determination that the services rendered are conforming is solely the responsibility of the US Government. The US Government Service Delivery Summary (SDS) is not a substitute for contractor quality control. The US Government will monitor the contractor's performance in accordance with the SDS.
- (e) Performance Measurement. The Contracting Officer (KO) and the COR will monitor contractor performance and compliance with the terms and the conditions of the contract in accordance with the SDS. The COR, in conjunction with the KO, will conduct periodic meetings with the contractor to discuss operations, and problem areas.
- (f) Visits. US Government personnel, including but not limited to the COR and/or Government representative and/or CFAY Fuels Terminal Operator, may make announced periodic visits to the contractor's facilities to observe daily operations. Announced visits will follow a 1-day prior notice to the contractor. During these visits, the contractor shall provide knowledgeable personnel to tour and inspect the areas. The KO and/or his representative will make periodic inspections.

1.7 Insurance Requirements.

- (a) Cargo Insurance. The Contractor shall provide cargo insurance, at its own expense, as required by Japanese law, at least equal to the value of the cargo transported.
- (b) Liability, Pollution and Environmental Insurance. The Contractor shall provide at its own expense, the appropriate amount of insurance as required by Japanese law.

- (c) Policy Notification. The contractor shall provide copies of cargo, public liability, and pollution liability insurance certificates to the KO prior to contract award and each time there is a change in coverage or policy renewal.
- (d) Written Notice. The Contractor shall furnish a written notice to the KO 30 days in advance of the effective date of any reduction in, or cancellation of the cargo, public liability, or pollution liability insurance policies.

1.8 US Government Ordering Officer Responsibilities

- (a) CFAY will be the ordering office under this contract. The Contractor will be provided the name and contact information for the Ordering Officer at time of award. The Ordering Officer will perform the following duties:
- (i) Cargo Routing. Issue cargo routing instructions to shippers.
 - (ii) Order Services. Place delivery orders for refueling and defueling services and schedule all movements.
 - (iii) Contact Information. Furnish the contractor with the names and contact information of persons designated as the US Government's ordering, inspecting, and receiving representatives upon award of the contract.
 - (iv) Acknowledge Receipt. Acknowledgement of receipt shall be completion of the Tanker/Barge Material Inspection and Receiving Report (DD 250-1) consisting of location, date of arrival, barge name/number, and cargo number and shall provide for signature by both a contractor representative and a designated US Government representative.
 - (v) Measure, Verify and Document Cargo. Arrange for measurement, verification, and documentation of all cargo remaining aboard barges after delivery, as well as the reason..
 - (vi) Notify Customer Vessels. The Ordering Officer will notify the receiving Customer vessels of the scheduled arrival of the barge, including estimated date and time of arrival, barge name/number, and cargo number.
 - (vii) Authorize Access. Arrange for an authorized representative of the contractor to have access to CFAY facilities to load barges as necessary.
 - (viii) Supply Required Forms. Supply the contractor with all forms that the contractor is required to file with the Government representative or CFAY Fuels Terminal Operator. Provide a Safe Berth. Provide a reachable and safe berth at CFAY for the barge to be afloat at all times, free of dockage, wharfage, pilotage, toll, and port charges. Once loading is complete, the barge will only be allowed to remain at the pier with the coordinated request and agreement of the Ordering Officer and DFSP personnel.
 - (ix) Inspect and Accept Equipment. CFAY COR or Government Representative will conduct pre-award and/or pre-service inspections for contractor equipment (See Section 1.9(n)).

1.9 Contractor Furnished Equipment and Crew.

The Contractor shall furnish all supplies, materials, equipment, and personnel (including line handlers) necessary to perform the services incidental to the operation of the equipment listed below. The Contractor and its equipment must possess and carry on board proof of compulsory insurance in compliance with Japan's Act on Liability for Oil Pollution Damage, for approval to operate in Japanese coastal and inland waterways. The Contractor shall provide a copy of the compulsory insurance with their proposal.

- (a) Barge Equipment Requirements. The Contractor shall have sufficient self-propelled tank barges with ocean-going capability to perform deliveries of fuel in the quantities outlined in Section 1.1. All barges must be double hulled and be not more than 15 years old at anytime during the life of the contract. Contractor is required to comply with the maximum safe navigable draft and length at DFSP (See Section 1.10). Barges must be equipped with fenders to prevent damage to Customer vessels.

- (b) Cargo Pumping System. All barges must have cargo pumping systems with necessary hoses and connections capable of completely discharging and stripping the cargo tanks without outside power or assistance from the shore. Prior to loading, CFAY personnel will connect hoses to shore facilities and Contractor will connect hoses to barge. Prior to discharge or defuel, Contractor personnel will connect hoses to barge and Customer Vessel personnel will connect hoses to their vessel.

- (c) Cargo Tank Stripping System. All barges must have an independent cargo tank stripping system (free from use of barge pumps, lines, or hoses) capable of stripping all but a maximum of 100 USG of product per cargo tank, not to exceed 500 USG for the entire barge. The discharge rate during tank stripping operations may be less than the minimum rates stipulated above.

- (d) Water Stripping System. All barges shall have an independent water stripping system (free from use of barge pumps, lines, or hoses) capable of removing all water from each cargo compartment. In the event that a large amount of water is discovered on the barge, the Contractor and Government representative or CFAY Fuels Terminal Operator will investigate to determine the source and cause of the water. If the water source is determined to be from the shore tank, the US Government will be responsible for the cost of removal. If the source is determined not to be the cause of the US Government, such as intake of seawater, then the Contractor shall assume removal costs

- (e) Gauge Point Marks, Strapping Tables, Trim Charts and Calibration. All barges shall contain permanent gauge point marks with reference height stenciled to the deck or compartment hatch, certified strapping tables not exceeding eight years in age (provided that no structural alterations have been performed subsequent to the calibration date), trim correction charts and legible draft markings. The Contractor shall provide copies of the cargo strapping tables and trim correction charts to the Government representative or CFAY Fuels Terminal Operator upon request at loading and discharge points. A packet containing all strapping tables and trim correction charts pertaining to all equipment used in the performance of this contract shall be available on each tug or barge. The Contractor shall provide a list showing the maximum load capacity of each barge at safe draft, updated whenever equipment or regulation or traffic area depths change. The Contractor shall develop and maintain a barge gauge history for US Government use or inspection in comparing barge loaded figures to shore loading figures. Anytime the physical structure of a barge is changed, due to damage or equipment modification, the barge must be strapped again, and a new set of strapping tables and trim correction charts provided to the US Government, at no cost to the US Government.

- (f) Stainless Steel Tanks. All barge cargo tanks will be constructed of either stainless steel, carbon steel that has been epoxy coated with a non-coal tar based grade of epoxy, or uncoated mild steel.

- (g) Steel Valves. Steel valves shall be an integral part of all barges used in the performance of this contract. Use of copper and copper alloys (brass, bronze, etc.) in barge compartments, pipelines, heating coils, and fittings is not permitted.

(h) Spill Rails. Spill rails are required on all barges.

(i) Fenders. Barges must be equipped with appropriate fenders (e.g., donut fenders) to prevent damage to Customer vessels and mooring facilities during all phases of the operation.

(j) Spill Response Equipment. Each barge must carry sufficient oil boom and other related spill response equipment necessary to contain a potential spill at the point of transfer.

(k) Hoses and Connections. All cargo hoses, fittings, and connections must be in good working condition, certified for their intended use, and compatible with vessel connections. Quantity and compatibility of hoses and connections must be sufficient to support fueling operations.

(l) Sectional Fuel Delivery Hose. Barge shall be equipped with 200 feet of sectional fuel delivery hose (ship or dock hose) and various coupling attachments necessary for over-the-water fuel loading to ships or other marine vessels. The Contractor is liable for any damage or loss resulting from faulty equipment or caused by contractor negligence.

(m) Barge Initial Inspection and Acceptance. The Contractor shall provide barge equipment that conforms to the specifications of this contract (see Section 1.9(a), Barge Equipment Requirements), and that passes the US Government's loading inspection. US Government inspection and acceptance of the contractor's equipment is a condition precedent to the US Government's obligation to make payment under the delivery order.

(n) Performance Objective - Pre-Service Inspection. At the time and date specified by the US Government's Representative or CFAY Fuels Terminal Operator, the Contractor shall make its barge(s) available for inspection and acceptance by the US Government at CFAY. If the Contractor fails to provide conforming equipment at the designated time, the COR will notify the KO for further resolution. Barge tanks must be prepared IAW the tables in MIL-STD-3004 Minimum Requirements for the preparation of barge and tanker cargo tanks. Any barge which previously carried "Palm Oil" is not acceptable unless the Contractor obtains a waiver from NAVSUP Energy. Barges must be presented cleaned, gas free, and free of temporary patches. The Contractor shall provide a valid marine chemist certificate to the US Government representative or CFAY Fuels Terminal Operator prior to inspection. Cargo tanks and bulkheads must be free of water, loose rust, sludge, mud, silt, and foreign objects. The Contractor is responsible to take a sample of scale from inside cargo tank(s) and have it tested to determine the potential effects of the corrosion and gum characteristics on the cargo to be loaded. Contractor shall present scale sample certificate of analysis to the US Government representative or CFAY Fuels Terminal Operator for review. The Contractor shall prepare the barge for inspection at its own expense. Acceptance of the equipment by the US Government shall in no way be construed to attest to the seaworthiness of the barge or to other requirements of the Japanese maritime laws and regulations, overseen by the Ministry of Land, Infrastructure, Transport and Tourism (MLIT) and the Japan Coast Guard. The US Government Government representative or CFAY Fuels Terminal Operator will issue written confirmation of acceptance of equipment through the COR.

(o) Maintain, Position, and Operate Equipment. The contractor shall maintain, clean (including slop tanks), repair, position and operate its equipment to ensure its performance under the contract, including providing fuel to operate the barge pump engines and shall provide all crew living provisions.

(p) Provide a Licensed Tankerman. The Contractor is responsible for following all governing regulations and statutes in providing a licensed tankerman at all loading and discharge points identified in the PWS or hereafter required by the US Government. The licensed tankerman must gauge barge tanks jointly with the US Government Representative or CFAY Fuels Terminal Operator and make a record of quantities on required forms including Tanker/Barge Material Inspection and Receiving Report (DD 250-1). As directed by the COR, the contractor must furnish any additional shore tankerman as required.

(q) Communication between Crew and Customer. The Contractor shall ensure that its personnel, representatives, and any subcontractors directly involved in the provision of services or delivery of goods to vessels, including all interactions with customers and other active-duty personnel, are able to communicate effectively in the English language. At all times during service delivery, the Contractor must have at least one representative on-site who is fluent in English to act as a point of contact for Government personnel.

1.10 Berth Information:

Berth	Maximum Ship's LOA (feet)	Maximum Ship's Beam (feet)	Maximum Ship's Draft (feet)	Maximum Ship's DWT (tons)	Type of Manifold (inch)	Type of Manifold (connection)
Yokosuka (Berth 2)	567	65	34	10,000	Various * (1)	Various * (1)

Yokosuka (Berth 3)	567	85	34	10,000	Various * (1)	Various * (1)
Yokosuka (Berth 6)	844	110	36	46000	Various * (1)	Various * (1)
Yokosuka (Berth 7)	690	108	36	46000	Various * (1)	Various * (1)
Yokosuka (Berth 8)	636	105	39	46000	Various * (1)	Various * (1)
Yokosuka (Berth 9)	636	105	39	46000	Various * (1)	Various * (1)
Yokosuka (Berth 12)	1092	252	41	103000	Various * (1)	Various * (1)
Yokosuka (Berth 13)	360	30	30	6,100	Various * (1)	Various * (1)
Yokosuka (Harbor Master Pier - West)	690	108	36	46000	Various * (1)	Various * (1)
Yokosuka (Harbor Master Pier - East)	690	108	36	46000	Various * (1)	Various * (1)
Hakozaki (North Dock - 244)	590.5	N/A	32.8	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm
Hakozaki North Dock - 246)	657.2	N/A	34.2	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm

Hakozaki (Canal Dock)	150	20	13	700	8 (ANSI)	Loading Arm
Yokohama (North Pier B)	460		23		Various	Various * (1)
Yokohama (North Pier D)	250		25		Various	Various * (1)
Yokohama (North Pier E)	600		30		Various	Various * (1)
Yokohama (North Pier F)	500		30		Various	Various * (1)

Various *(1) Bunker barge will moor alongside vessel berthed at pier. Connection type varies by vessel class.

1.11 Regulation/Instruction for Oil Spills:

When fuel spills occurred during operations, the Contractor shall commence action to remove and clean-up the spilled oil immediately. The Contractor is responsible for cleaning up the spills that occur as a result of the contractor's fault; if such spills damage U.S. Government property, it is responsible for reimbursing the Government for the cost of the spilled fuel. The Contractor shall comply with the following law and regulations as to oil spillage:

(i) Japanese Environmental Governing Standards (JEGS), Chapter 18,

Spill Prevention and Response Planning issued by U.S. Forces Japan.

(ii) Law Relating to the Prevention of Marine Pollution and Maritime Disaster

Continuation of Inspection and Acceptance

The inspection and acceptance locations for the following CLIN(s) / SLIN(s) / ELIN(s) were added:

0002

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	VALUE
Action	Both
Location	Destination
Acceptance Location	N61054 COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES
Instructions	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment
POC Name	TBD
POC Email	TBD
POC Telephone	TBD

The inspection and acceptance locations for the following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0003

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0004

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0005

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Location	Other	Destination
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0006

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0007

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept

	atDestinationAccept byGovernment	byGovernment
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0008

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0009

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0010

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0011

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

0012

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1003

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1004

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1005

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Location	Other	Destination
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1006

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1007

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1008

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1009

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1010

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1011

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO
Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment

1012

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

INFORMATION	FROM	TO

Instructions	Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment	Instructions: Inspect atDestinationInspect byGovernmentAccept atDestinationAccept byGovernment
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The inspection and acceptance locations for the following CLIN(s) / SLIN(s) / ELIN(s) were deleted:

0002

Inspection and Acceptance Location - N61054 - DEFENSE DISTRIB CT YOKOSUKA JAP

0013

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

0014

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

0015

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

0016

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

0017

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

1013

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

1014

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

1015

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

1016

Inspection and Acceptance Location - N61054 - COMMANDER FLEET ACT YOKOSUKA

Continuation of Deliveries or Performance

The delivery information for the following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0012

INFORMATION	FROM	TO
Period of Performance	10 Apr 2026 to 09 Apr 2027	10 Apr 2027 to 09 Apr 2028

The delivery information for the following CLIN(s) / SLIN(s) / ELIN(s) were deleted:

0013

Period of Performance 0014

Period of Performance 0015

Period of Performance 0016

Period of Performance 0017

Period of Performance 1013

Period of Performance 1014

Period of Performance 1015

Period of Performance 1016

Period of Performance

Contract Clauses

Additional Information/Notes

The following clauses were modified:

52.233-4 Applicable Law for Breach of Contract Claim.

Sep 2004

Date Changed From: Jan 2026 To: Sep 2004

Addendum to Contract Clauses

Contract Clauses

Additional Information/Notes

The following clauses were modified:

52.209-10 Prohibition on Contracting with Inverted Domestic Corporations.

Oct 2015

Date Changed From: Jan 2026 To: Oct 2015

Solicitation Provisions

Additional Information/Notes

The following clauses were modified:

52.209-7 Information Regarding Responsibility Matters.
hereby reads as follows:

Sep 2018

Date Changed From: Jan 2026 To: Sep 2018

Addendum to Solicitation Provisions

Additional Information/Notes

The following clauses were modified:

52.222-50 **Combating Trafficking in Persons.**

Oct 2021

Date Changed From: Jan 2026 To: Oct 2021